

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

May 28, 2020

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00 p.m. via WebEx Electronic Conference Meeting for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Laybourn, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor and Mr. White. Also present: Kylie Soden, Deputy City Clerk; Michael O'Donnell, City Attorney; Alessandra McCoy Fakelman, Deputy City Attorney; Robin Lockman, City Treasurer and Chief Greg Hoggatt, Fire and Rescue Department.

Pursuant to Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows, Mayor Orr advised the governing body would be going into executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further explained when the governing body met in executive session, they would be meeting in a private electronic conference, and that Fire Union representatives will meet privately off-line for the purpose of meeting to caucus.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Roybal moved to meet in executive session, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. Mayor Orr identified, in addition to members of the governing body present, the Deputy City Clerk, City Attorney, Deputy City Attorney, City Treasurer and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 6:04 p.m. via electronic conference meeting]

Following closure of the executive session, Dr. Rinne reconvened the special meeting at 7:25 p.m. [City Clerk note: Mayor Orr left during executive session due to a prior commitment]. City Attorney Michael O'Donnell reviewed the “crib notes” which had also been provided to members of the governing body and the Union. He explained the crib notes contain City and Union offers that are being presented for the current contract and the 2020-2021 contract pursuant to Section 7, Re-Negotiations. Mr. O'Donnell noted the proposals mainly involve next fiscal year's contract and budget, but both contracts must be reviewed under Section 7 to accomplish this. David Evans, Attorney representing the Union, didn't express any opposition with the process of presenting and reviewing the offer. Mr. O'Donnell reviewed and explained information presented during previous discussion with the Union in conjunction with Section 7, Re-Negotiations and Section 45, Labor Management Relation. He advised the City proposed an overall budget cut of 8% resulting in \$880,000 in savings to include foregoing longevity pay resulting in \$143,600 in savings and reducing 3 firefighter trainee positions resulting in \$266,727

in savings. Union response and City counteroffers included: 1 year cut of Uniforms (\$49,750 suggested savings) – City counteroffered to accept the proposal, but offered that it only be ½ of uniform costs and add in \$250 from administration uniform costs (\$25,125 savings); Eliminate Administrative Professional Development (suggested savings of \$1,000) – City rejected the proposal; Eliminate Prevention Professional Development (suggested savings of \$3,000) – City rejected the proposal; Freeze Office Manager Position (suggested savings of \$95,903) – City rejected the proposal; Utilize EOD vs. the pay for holidays (est. savings of \$130,000 based upon Union calculation of 50% of employees electing EOD vs. pay) – it was noted the suggested savings calculation is in error. According to the Treasurer’s office and based upon most recent data, the short term savings would be approximately \$62,000. In the long term, the proposal will likely cost the City more than the current approach -the City rejected the proposal; Promotion of Lieutenant to Division Chief and cut Lt. of Prevention position (estimated savings of \$131,525) – it was noted the estimated savings is not as much as the Union prediction as the specific lieutenant is already acting in the capacity of Division Chief. If the Lt. of Prevention position is cut and the acting Lt. of Prevention returns to shift operations, the savings is only estimated at \$21,400. The proposed budget is based upon the loss of three firefighter positions and the budget already contains a reduction of \$75,500 with a reorganization of day staff moving back to shift operations to support the line crews. The City rejected the proposal and counteroffered the following – keep the 3 firefighter trainees employed and wait for 3 expected retirements in the next 6 months. The retiring positions will not be re-filled in the upcoming fiscal year therefore the number of firefighters will drop from 91 to 88 and remain there until the end of the fiscal year absent any kind of change of circumstances like federal funding (savings of \$133,364). The City re-offered elimination of longevity pay for 1 year (savings of \$143,600) and offered the following: The Fire Chief will obtain \$30,000 in savings by making internal changes, but the changes aren’t part of the Collective Labor Agreement negotiations and the balance of needed savings will be made up from reserves in the amount of \$78,238. Mr. Evans expressed concern with dropping the number of firefighters from 91 to 88, requested clarification on the proposed amount of savings and inquired if a SAFER grant was applied for. Mr. O’Donnell and Fire and Rescue Chief Greg Hoggatt explained the grant wasn’t applied for since it was for new firefighter positions, not existing ones. Mr. O’Donnell advised the City will continue work with the Union to obtain CARES act grants and any other stimulus bill grants that may be available. Comment was made that the amendments should contain language related to the necessity of the amendments are due to the effects of Covid-19. Mr. Evans requested a recess at 7:44 p.m. for the purpose of reviewing the City’s offer.

Upon reconvening at 7:58 p.m., Mr. Evans explained the Union’s priority is maintaining 91 firefighters. He noted the Union thought they offered \$400,000 in budget cuts, but acknowledged the City Treasurer’s recalculated amount. He provided the following information related to Union counteroffers – accept Fire Chief’s \$30,000 in savings by making internal changes, re-offer forgoing uniforms for 1 year, re-offered utilizing EOD vs. pay for holidays and in an effort to maintain 91 firefighter positions, the Union offered taking a 1% cut in pay. Mr. Case moved to meet in executive session, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 8:06 p.m. via electronic conference meeting]

Following closure of the executive session Dr. Rinne reconvened the special meeting at 8:28 p.m. Mr. O’Donnell reviewed the following counteroffers from the City – accept Union’s

offer of uniform reductions, acknowledge Fire Chief's proposed \$30,000 in administrative savings and reoffer reduction of longevity pay for one year. The \$126,400 balance will become the pay reduction for firefighters for next year. The City Treasurer will have an accurate percentage calculation for the pay reduction by tomorrow. The total savings will be \$350,000. Mr. Evans commented on the following: longevity pay being a strong position for the Union, \$208,000 (1% proposed cut) in proposed savings is for the base firefighter wage, significance of offering 1% pay reduction and the purpose of collective bargaining process. Upon inquiry, Mr. O'Donnell confirmed the City had not accepted the EOD vs. pay for holiday proposal. Mr. Evans further commented on proposed "philosophical" cuts and expressed the importance of considering all proposals during the current budget crisis. Mr. Evans requested a recess at 8:30 p.m.

Upon reconvening at 8:42 p.m., Mr. Evans noted he believes the interest of the governing body is meeting a budget crisis opposed to resolving annual contractual concerns. He advised they believe the EOD vs. pay for holidays predicted savings of \$62,000 is a minimum amount and will probably be more. He reiterated the Union's commitment to resolving budget concerns based on their proposed 1% pay cut. Related to the uncertainty of the EOD dollar figure, Mr. O'Donnell inquired if the Union would entertain moving the EOD savings of \$62,000 to the pay reductions. Mr. Evans advised they feel the proposed 1% pay cut is the most they can do with membership given they previously agreed to no raises. He further noted comp time has been used for years in lieu of overtime on holidays. Mr. Cook moved to meet in executive session, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 8:51 p.m. via electronic conference meeting]

Following closure of the executive session, Dr. Rinne reconvened the special meeting at 9:02 p.m. Mr. O'Donnell advised the City will accept the Union's EOD vs. pay for holidays offer on 2 conditions: 1) that it is only for the FY 2021 contract and has no influence on future contracts and 2) the number of firefighters that can have a day off is reduced from 4 to 3 to manage the numbers of those taking leave. That number can be reviewed daily after sick call. Dr. Rinne clarified that longevity pay will remain in place. Mr. Evans requested a recess at 9:04 p.m.

Upon reconvening at 9:17 p.m., Mr. Evans commented on comp time management concerns. Chief Hoggatt explained the preschedule aspect noting miscellaneous scheduled leaves contributes to availability. By reducing the number of firefighters who can take a day off from 4 to 3, overtime will be able to be managed better. If a firefighter has pre-scheduled a day off, they will be allowed to take the time off. Mr. Evans requested a recess at 9:22 p.m.

Upon reconvening at 9:26 p.m., Union representative TJ Haws explained there are members who have already scheduled future vacation time and there would be the potential they will not be able to take their scheduled time with reducing the allowed number of firefighters off daily from 4 to 3, therefore, the Union declines the proposal of decreasing the number of firefighters allowed to take a day off from 4 to 3. Mr. Shanor moved to meet in executive session, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body present. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 9:30 p.m. via electronic conference meeting]

Following closure of the executive, session Dr. Rinne reconvened the special meeting at 9:38 p.m. Mr. O'Donnell explained the proposal is if a 4th spot is already scheduled for time off, that person will be allowed to take the time, but if that spot isn't already filled, it won't be. This is only for FY 2021 until the Covid-19 crisis is over. Mr. Evans requested a recess at 9:39 p.m.

Upon reconvening at 9:46 p.m., Mr. Evans requested freezing the 4th slot through December 31, 2020, scheduling vacations after January 1, 2021, and then freezing any remaining available 4th slots through June 30, 2021. Upon inquiry on when freezing of the 4th time off slot would start, Chief Hoggatt explained there are protected pre-retirements and FMLA and deployment leaves that will be contributing to overtime through the end of June. The requirement needs to be in effect for the contractual time limit due to Covid-19 issues. Mr. Evans acknowledged the need to finalize offers, the need for forecasting overtime needs when retirements occur and that prescheduled vacations will be honored and in the future will be accommodated if it doesn't cause overtime. He made suggestions regarding hiring and academy time frames. Mr. Evans accepted reducing the number of firefighters who can take a day off from 4 to 3. Chief Hoggatt confirmed freezing of the 4th slot will begin July 1, 2020 and will only be frozen if it is still open. Mr. O'Donnell noted the Attorney's office will craft the final contract language.

Dr. Rinne stated the purpose of the special meeting had been met, and there being no business previously noted for the special meeting, adjourned the meeting at 9:59 p.m.

Submitted by,

Kylie Soden,
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
June 11, 2020